

SUPERIOR COURT OF CALIFORNIA
COUNTY OF VENTURA

Probate Notes

2025PRDE037583: IN THE MATTER OF FRED ERIC TOMAS BRAAM

08/27/2026 in Department J6

Motion To Enforce Court Order Approving Settlement Agreement

The Settlement Agreement was signed on a date in December 2025 (no day of December was entered on the signature page).

Ms. Braam filed the Motion for Approval of Stipulation for Settlement on 12/24/25, requesting the court retain jurisdiction pursuant to CCP §664.3 and that the court adopt the Stipulation for Settlement as an Order of the Court. The Court Order for Approval of the Stipulation for Settlement occurred on January 29, 2026.

The Settlement Agreement does not provide an effective date. The Settlement Agreement states:

3. COURT JURISDICTION AND ENFORCEMENT

3.1 Retention of Jurisdiction: The Parties agree that the Ventura County Superior Court shall retain jurisdiction over this Agreement and the Parties for the purpose of enforcing its terms. The Parties consent to the continuing jurisdiction of the Court for this purpose pursuant to Civil Code Section 664.6. ***A request for approval of the Settlement Agreement will be submitted to court by Petitioners.***

The Settlement Agreement expressly states that a request for approval will be submitted to the court by petitioner.

It appears that the effective date of the agreement is 01/29/26, the date the court signed the stipulation.

The Settlement Agreement states, “(i) Upon vacating the real property located at 243 Pajaro Avenue, Ventura, California within 60 days of the effective date of this agreement. ***If Jacquelyn Traverson provides written notice of locating verifiable new housing, Erin Braam shall pay her before her actual move \$15,000.00 with the balance remaining promptly paid upon vacating the premises.***” (emphasis added)

Mr. Baskin’s email dated 04/27/26 states that he has been told escrow has closed but has received no proof; that he has not received written notice of verifiable new housing because Ms. Traverson did not give him a date when she would be completely out of the house. He goes on to state, “*Obviously the best*

evidence of verifiable new housing is that you have moved out of the existing BRAAM house, which apparently has not occurred.” (emphasis added)

This is not what the settlement provided. Ms. Braam was to pay the \$15,000.00 to Ms. Traverson before her actual move. Ms. Braam, through her attorney, was given written notice of verifiable new housing no later than 04/09/26.

Ms. Traverson is correct in that the Settlement Agreement does not condition payment upon Respondent providing a move-out date acceptable to Mr. Baskin, nor does it grant him discretion to withhold payment until he is satisfied with Respondent's moving plans. Mr. Baskin unilaterally modified the parties' agreement and imposed conditions, information and additional assurances that were never negotiated for in the Parties' agreement.

Ms. Traverson states Mr. Baskin did not authorize the release of the remaining \$6,600 (of the initial \$15,000) until May 9, 2026, and only after a statement of the Respondent's closing costs were shared with him. After receiving the balance of the first \$15,000 payment, the Respondent vacated the Pajaro property by the end of the month (May).

Ms. Braam was not allowed, per the Settlement Agreement, to piecemeal the payment of the initial \$15,000.00 to Ms. Traverson.

Ms. Traverson moved out two months after the 60 days ran (March 29, 2026).

Ms. Braam requests \$17,333.68 in “fair market rent” commencing 60 days from the effective date of the Settlement Agreement at the monthly rate of \$5,000.00 through to May 31, 2026 and at the daily rate of \$166.67 thereafter until she and all occupants have vacated the premises, and an order that Ms. Traverson pay the sum of \$7,147.41 for attorney's fees and costs incurred.

Ms. Traverson requests a court order Respondent to pay her the remaining \$15,000 and order Petitioner to pay Respondent's Attorney Fees and cost associated with defending Petitioner's Motion in the sum of \$4,400.

The Settlement agreement provides:

3.2. Enforcement:

In the event of a breach of this Agreement, the non-breaching Party shall be, entitled to seek all available remedies at law or in equity, including, but not limited to, specific performance, injunctive relief, and damages, including reasonable attorney's fees and costs incurred in enforcing this Agreement.

It appears that both parties failed to comply with the Settlement Agreement, and were in breach of the Settlement Agreement. Ms. Braam did not provide the initial payment when provided written notice of verifiable new housing. As early as January Ms. Traverson sought the release of funds from Ms. Braam as she had located suitable choices. The funds were not released. When Ms. Traverson opened escrow in April, Ms. Braam only made partial payments of the initial \$15,000.00.

Ms. Traverson vacated the property approximately 60 days late, which she states is in part due to Ms. Braam's failure to abide by the terms of the Settlement Agreement.

As there is no "non-breaching Party" neither is entitled to damages.

Ms. Braam to pay the remaining \$15,000.00 to Ms. Traverson per the Settlement Agreement.